

Rapti Dun Development Area Land (Sale and Distribution) Management Act, 1967

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Rapti Dun Development Area Land (Sale and Distribution) Management Act, 2024

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Amending Acts:

1. Some Nepal Laws (Amendment) Act, 2025 2025.1.2.28
2. Judicial Administration Reform Act, 2031 2031.4.18
3. Special Court Act, 2031 2031.6.20
4. Judicial Administration Reform (First Amendment) Act, 2033 2033.4.10
5. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.7.24
6. Judicial Administration Act, 2048 2048.2.16

Certification and Publication Date

7. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.07
8. Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072 2072.6.14
9. Some Nepal Acts Amendment Act, 2072 2072.11.13

Act No. 23 of the year 2024

An Act made to provide for the (Sale and Distribution) of Land in the Rapti Dun Development Area

Preamble: Whereas, under the Regional Development Plans (Implementation) Act, 2013, land sold and distributed in accordance with the Regional Development Plan (Rapti Dun Land Distribution) Rules, 2013, has, without remaining in the rights of those entitled to receive it in the sale and distribution, fallen into the hands of other persons; and whereas, to maintain the convenience and economic interest of the general public, it is desirable to fairly sell and distribute such land;

Therefore, from His Majesty King Mahendra Bir Bikram Shah Dev, with the advice and consent of the National Panchayat, this Act is enacted. Chapter-1

Preliminary

1. Short title, extent and commencement: (1) This Act may be called the "Rapti Dun Development Area Land (Sale and Distribution) Management Act, 2024".
- (2) This Act shall apply to the area mentioned in the Schedule.
- (3) This Act shall come into force immediately. 2.

Definitions: Unless the subject or context otherwise requires, in this Act? (a) "Development Area" means the

land within the four boundaries mentioned in the Schedule. (b) "Rules" means the Rules made under the Regional Development Plans (Implementation) Act, 2013. (c) "Family" means any person and the following relatives of that person: (1) Husband or wife, whether separated in share or not, (2) Sons, daughters, added by the Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072. under 16 years of age, whether separated in share or not, as long as the father or mother is alive, (3) Deleted by the Act to Amend Some Nepal Acts for Gender Equality and Ending Gender-Based Violence, 2072 (4) Co-parceners living in joint family, whether separated in share or not, (d) "Commission" means the Commission constituted or to be constituted from time to time by the Government of Nepal to work in the Development Area. (e) "Forest" means a forest to which the Forest Act, 2049 applies. (f) "Notified Order" means a notice published by the Government of Nepal in the Nepal Gazette. (g) "Prescribed" or "as prescribed" means as prescribed in this Act or in the Rules made under this Act. Chapter-2 Constitution and Jurisdiction of the Commission, etc. 3. Constitution of Commission: (1) If the Government of Nepal considers that it is necessary to investigate and re-sell and distribute the land of the Development Area under this Act, it may, by a Notified Order, constitute a Commission comprising one or three members. (2) If a Commission with three members is constituted, the member designated by the Government of Nepal shall be the Chairperson, and decisions of the Commission shall be by majority. (3) In the case of a Commission with three members, the Commission may conduct its business and make decisions even if the Chairperson and one member are present. Provided that if opinions are divided, all three members shall be present and the decision shall be according to the majority. 4.

Prohibition on acquiring land: (1) After the commencement of this Act, no member or employee of a Commission constituted thereafter shall acquire any land in the Development Area in their own name or in the name of their family, or in the name of any other person on behalf of themselves or their family, when such land is being re-sold and distributed under this Act. (2) If any person acquires land in contravention of sub-section (1), such land shall be confiscated and dealt with according to the prevailing Nepal law. 5. Jurisdiction of Commission: Amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066. (1) The Commission may conduct proceedings by adopting the procedure under the Special Court Act, 2049. Provided that such Commission shall not be entitled to exercise the authority under clause (e) of section 6 of that Act. (2) The Commission may, in writing, delegate its internal or administrative work to any member or employee. (3) The Commission may make internal rules for the smooth conduct of its work. 6. Transfer of cases: (1) Pending diary cases relating to land in the Development Area in any court or tribunal other than the Supreme Court or the Revenue and Tax Court shall be transferred to the Commission constituted after the commencement of this Act. (2) If the Commission is dissolved, the pending cases in the Commission shall be transferred to the District Court, amended by the Judicial Administration Reform (Fourth Amendment) Act, 2043. and such court shall conduct and conclude proceedings under this Act. 7. Changing members and dissolving Commission: The Government of Nepal may, by a Notified Order, change members or dissolve the Commission. 8. Validation of Commission: If any Commission constituted before the commencement of this Act has done any work or proceeding from the date of 19 Poush, 2020, Roj 6, and such work is not contrary to this Act, it shall be deemed to have been done under this Act; and if it is contrary, the Commission may confiscate such land. 9. Appeal: An appeal against the final decision or judgment made by the Commission under this Act shall lie to the High Court, amended by the Some Nepal Acts Amendment Act, 2072. within 35 days. Chapter-3 Power to Investigate Land in the Development Area 10.

Investigation of land in the Development Area: The Commission may investigate land in the Development Area as follows, and if so determined, the Commission may confiscate such land: (a) Where land was not obtained in accordance with the Rules, (b) Where land was obtained in accordance with the Rules but the

conditions prescribed by the Rules were not complied with. Provided that if such land is confiscated, the Government of Nepal may allow the person in whose possession and use it is at the time of confiscation to continue to possess and use it to that extent in accordance with the prevailing Nepal law. 11. No claim of right of any kind and right to refund of price: A person who has paid the price for land in accordance with the Rules but has not obtained the land shall, as prescribed in the Notified Order, (deducting any loan taken, if any) be entitled to a refund of the price previously paid. Chapter-4 Sale and Distribution of Land 12. Sale and distribution of land: (1) The Commission shall, subject to section 13, sell and distribute land confiscated under this Act as follows: (a) If, before the commencement of this Act, any person had obtained land in accordance with the Rules and had himself cultivated and earned income from that land, to the person or family possessing, using and cultivating such land, (b) If, before the commencement of this Act, the same land had been obtained by one or more than one family or person, to the family or person among such families or persons who has cultivated and earned income from that land.

Provided that if, among such families or persons, one had earlier cultivated and earned income from the land and was forcibly removed by another who later earned income from it, then to the family or person who earlier cultivated and earned income,

(c) If any person, firm or institution had obtained land under the Rules before the commencement of this Act on condition of using it for a specific program or project, but without complying with such condition had allowed another to cultivate it, to the family or person actually cultivating such land,

(d) Except in the circumstances mentioned in clauses (a), (b) and (c), if any person or family has been residing on any land in the Development Area up to the day preceding the commencement of this Act without possessing or using the land as a landowner or tenant, then to such family or person. Repealed by the Some Nepal Laws (Amendment) Act, 2034.(2)

(3) If any family or person has obtained only a certificate of sale and distribution of land without a specific land being designated, and has not possessed or used the land, or if a certificate has been obtained for land that was originally a road, pathway, pasture, etc., such certificate shall automatically become void after the commencement of this Act.

(4) A person or family who has obtained land in accordance with the Development Area Rules and is possessing and using it shall not be entitled to obtain land in the sale and distribution under this section. 13. Main conditions for sale and distribution of land: (1) Land sold and distributed under this Act shall be deemed to be sold and distributed subject to the following conditions and restrictions:?

(a) If the family or person obtaining land does not prove the condition under section 12, such land shall later be surrendered, and no concession or compensation shall be payable therefor,

(b) If such land is required for the purpose of maintaining a forest or forest boundary or for the protection of rhinoceros, the land shall be vacated within the period prescribed by the Government of Nepal. Provided that if land is so vacated, the Government of Nepal shall provide compensation in accordance with the prevailing law.

(2) If, upon investigation, the Commission finds that the condition under clause (a) of sub-section (1) has been violated, it may order confiscation of the land. An appeal against such order may lie to the High Court within 35 days. 14.

Conditions to be observed by the person obtaining land: (1) The family or person obtaining land in sale and

distribution under this Act shall not be entitled to sell, gift, or bequeath such land to another person until the price of the land payable to the Government of Nepal is paid, or until the land, if it requires cultivation, is cultivated and personally possessed and used for 3 years. (2) If any act is done in violation of sub-section (1), the right to the relevant land shall vest in the Government of Nepal, and the Government of Nepal may re-sell and distribute such land under this Act. (3) A person obtaining land under this Act shall pay the price of the land within 3 years in three equal installments within the prescribed period at the prescribed office or before the prescribed officer. Provided that if any person wishes to pay in a lump sum or within a shorter period than 3 years, he may do so accordingly. Chapter-5 Provisions relating to Registration of Land

15. Maintaining land registration: The Commission or the prescribed officer or office shall have the following powers in relation to maintaining the registration of land sold and distributed under this Act: Provided that the prescribed officer or office shall not have such power if it is within the office of the Commission. (a) To give collective or individual notices as necessary, to inquire necessary matters from concerned persons, to take statements, and to require them to submit documents. (b) To dispose of complaints and petitions pending before the sale and distribution. Amended by the Some Nepal Acts Amendment Act, 2072. (c) To carry out other necessary works as assigned from time to time by the Government of Nepal relating to the distribution of land within the Development Area.

16. Land registration, land revenue assessment and land revenue collection: (1) Land shall be registered in the name of the person entitled to receive it in the sale and distribution at the local land revenue office as prescribed. (2) A person obtaining land under this Act shall not be required to pay land revenue for the first year after obtaining the land. From the second year onwards, the person obtaining the land shall pay the land revenue as per the Notified Order based on survey or assessment at the local land revenue office. (3) If any person fails to pay the land revenue under sub-section (2), the prevailing law relating to land revenue shall apply.

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